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Q. In the UK, Parliamentary sovereignty allows amendments without judicial interference, whereas in India, judicial review limits Parliament's authority under article 368. Discuss whether India's constitutional framework strikes a balance between Parliamentary sovereignty and constitutional supremacy.

The constitution makers of India adopted the middle course between Parliamentary supremacy and judicial supremacy. Parliamentary supremacy is governed by the Indian constitution which requires judicial review. Parliament has the authority to amend the constitution, the changes must be valid within the scope of constitution.

DIFFERENCE BETWEEN UK AND INDIAN PARLIAMENTARY SOVEREIGNTY

	INDIA	UK
1. Source of power	Constitution (supreme)	Parliament (Supreme)
2. Judicial review	Exists	Didn't exist
3. Basic structure	Can't be amended	can amend any law
4. Fundamental rights	Parliament can't violate them	Can amend
5. Federalism	Division of powers	Unitary system, no division of power.

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PARLIAMENTARY SOVEREIGNTY

In a system of parliamentary sovereignty, the legislature holds supreme power, can make or unmake any law without being bound by a higher authority.

PARLIAMENT SOVEREIGNTY IN INDIA

- Article 368 of the Indian constitution allows Parliament to amend the constitution according to procedure mentioned in article.
- Parliament can amend the constitution through — simple majority like Article 2, 3, article 169 etc.
- Special majority :- FR, DPSP, Preamble etc of Parliament
- Special majority of Parliament along with 50% of state ratification.
- For ex :- Election of President, Part II etc.

- However, the S.C has established the "basic structure doctrine" which limits the power of Parliament to amend the constitution

JUDICIAL REVIEW AND BASIC STRUCTURE DOCTRINE

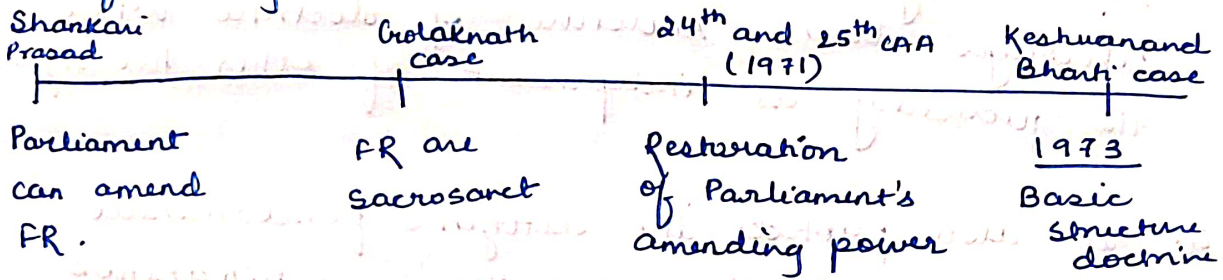
- The Indian judiciary has the power to examine the constitutionality of laws, including constitutional amendment.

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- The basic structure doctrine has evolved through following timeline :



In Keshwanand Bharti case, S.C introduced basic structure doctrine and said Parliament can amend any part of the constitution but can't change basic structure of constitution.

E.g :- S.C declared some clauses of 42nd CAA as unconstitutional in Minerva Mill case that sought to limit basic structure doctrine and judicial review.

SIGNIFICANCE OF CONSTITUTIONAL SUPREMACY IN INDIA

- Through basic structure it seeks to preserve constitutional principles and basic ideals envisioned by the constitution makers.
- It prevented the despotism character of government because of temporary majority in Parliament.

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3. It also strengthens our democracy by delineating a true separation of power through basic structure of doctrine where the judiciary is independent of other two organs.
4. It also protects the citizen's fundamental rights against the legislature's arbitrariness and authoritarianism.

DRAWBACKS OF JUDICIAL REVIEW

1. It is Maintaining constitutional supremacy sometimes invoke separation of power because of one branch usurped by another. A court may have the power but not rewrite a constitutional amendment.
 2. Judiciary acts as the third house and thereby subside the work done by the Parliament meaningless.
- Thus, the indian system aims to ensure that Parliament acts within the bounds of the constitution, while also allowing a degree of flexibility and adaptation through the amendment process while upholding the fundamental rights and principles enshrined in the constitution.